



The Rule in *Rylands v Fletcher*

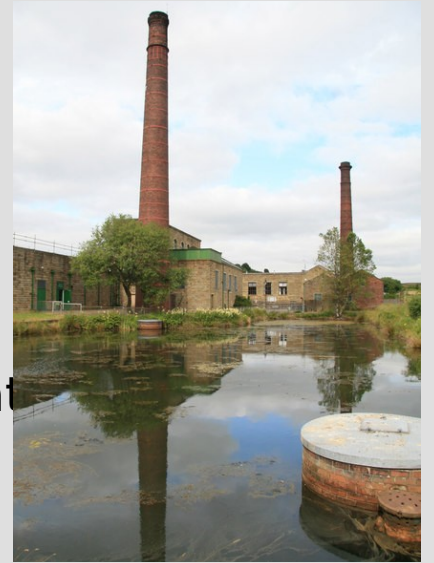
Week 16

Lecture 31 (Part B)

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Rylands v Fletcher **(1868) LR 3 HL 330**



The facts of the case:

- In 1860 D hired contractors to create a reservoir on his land to provide water for a mill;
- D had no further involvement in the actual construction;
- Old mine shafts ran under the land, unbeknownst to the D or the contractors;
- The old mine shafts ran under the D's land and the C's land;
- The hole was dug causing the mine shafts to be loosely filled with soil and D's contractors built the reservoir;
- After the reservoir was filled, the water burst through the shafts and flooded C's property, causing £937 worth of damage;
- C noted the flooding and installed a pump, but the pump burst, causing more flooding;
- An inspector called in to investigate the source of the flooding then discovered the connection in the mine shafts and source; and

The Issue Rule

Can a Defendant be held liable for indirect damage to a neighbour's property in the absence of any negligent act?

The

A Defendant can be held liable for indirect damage to a neighbour's land in the absence of negligence when:

- The 'thing' was brought/accumulated on the property;
- Escape would be mischievous/dangerous; and
- Use was non-natural.

A useful quote from *Rylands*

“We think that the true rule of law is, that the person who for his own purposes brings on his lands and collects and keeps there anything likely to do mischief if it escapes, must keep it in at his peril, and, if he does not do so, is prima facie answerable for all the damage which is the natural consequence of its escape...

... The person whose grass or corn is eaten down by the escaping cattle of his neighbour, or whose mine is flooded by the water from his neighbour's reservoir, or whose cellar is invaded by the filth of his neighbour's privy, or whose habitation is made unhealthy by the fumes and noisome vapours of his neighbour's alkali works, is damnified without any fault of his own; and it seems but reasonable and just that the neighbour who has brought something on his own property (which was not naturally there), harmless to others so long as it is confined to his own property, but which he knows will be mischievous if it gets on his neighbour's, should be obliged to make good the damage which ensues if he does not succeed in confining it to his own property. But for his act in bringing it there no mischief could have accrued, and it seems but just that he should at his peril keep it there, so that no mischief may accrue, or answer for the natural and anticipated consequence.”

New Law or Development of Existing Law?

- ***Vaughan v Menlove* (1837) 132 E.R. 490**
- “As the case of ***Smith v. Kenrick* [(1849) 137 E.R. 205]** is an illustration of the first principle to which I have referred, so also the second principle to which I have referred is well illustrated by another case in the same Court, the case of ***Baird v. Williamson* [(1863) 143 E.R. 831]**...My Lords, these simple principles, if they are well founded, as it appears to me



Rylands

Summary/Checklist

- 1) D must be occupier of the land;
- 2) D must bring/collect/keep an exceptionally dangerous or mischievous thing on the land;
- 3) D must have or should have recognised (reasonable/objective standard) an exceptionally high risk of danger or mischief in the event of an escape, **no matter how small/unlikely the risk** (so foreseeability of harm – not too remote);
- 4) D's use of land must be non-natural/unusual;
- 5) The thing does escape onto another property; and
- 6) Escape must cause legally recognised damage (property or amenity).
- 7) Limited defences are available.

N.B.

- there is no recovery for death or personal injury; and
- it is not necessary to establish negligence.

Standing

Standing to claim:

- ❖ Historically no proprietary interest required;
- ❖ Post-*Transco* a proprietary interest is needed (now closer to private nuisance).

Defendant's interest in land:

- ❖ D must own or control the land.
- ❖ A landlord might be liable if authorisation given for the accumulation.



Accumulation:

D must bring/collect/keep an exceptionally dangerous or mischievous thing on the land - The “Rylands Object”

- ❖ D must accumulate the “Rylands Object”, for their own purposes (so no agreement or benefit to the C).
- ❖ Spontaneous accumulations (eg rainwater, birds) would not therefore give rise to liability.
- ❖ The accumulation of something dangerous/mischievous related to non-natural use is

Examples of “Rylands Object” likely to cause mischief if they escape:

- Water
- Animals
- Electricity
- Fumes
- Gas
- Vibrations
- Poisonous plants
- Fire*
- Fireworks

* Sometimes volume, not type eg: 1 matchbox v 5,000 matchboxes; a birdbath

Escape:

A risk of escape and the mischievous or dangerous thing does escape onto another property

❖ The “*Rylands Object*” must escape

❖ *Read v Lyons* [1947] A.C. 156.

- C worked in a munitions factory and was injured by the explosion of a shell.
- It was accepted that an explosive shell is a dangerous thing.
- No liability as D was not negligent, and there was no ‘escape’.
- “...escape from a place where the D has occupation or control over land to a place which is outside his occupation or control.” per

❖ *Gore v Stannard* [2012] EWCA Civ 1248

- No-fault electrical fire ignited tyres at a tyre factory.
- Fire spread to C’s property causing damage.
- No liability under *Rylands* because:
 - what escaped was the fire, not the tyres;
 - use of land was not non-natural; and

Foreseeability:

D must have or should have recognised (reasonable/objective standard) an exceptionally high risk of danger or mischief in the event of an escape, no matter how small/unlikely the risk (so foreseeability of harm - not too remote)

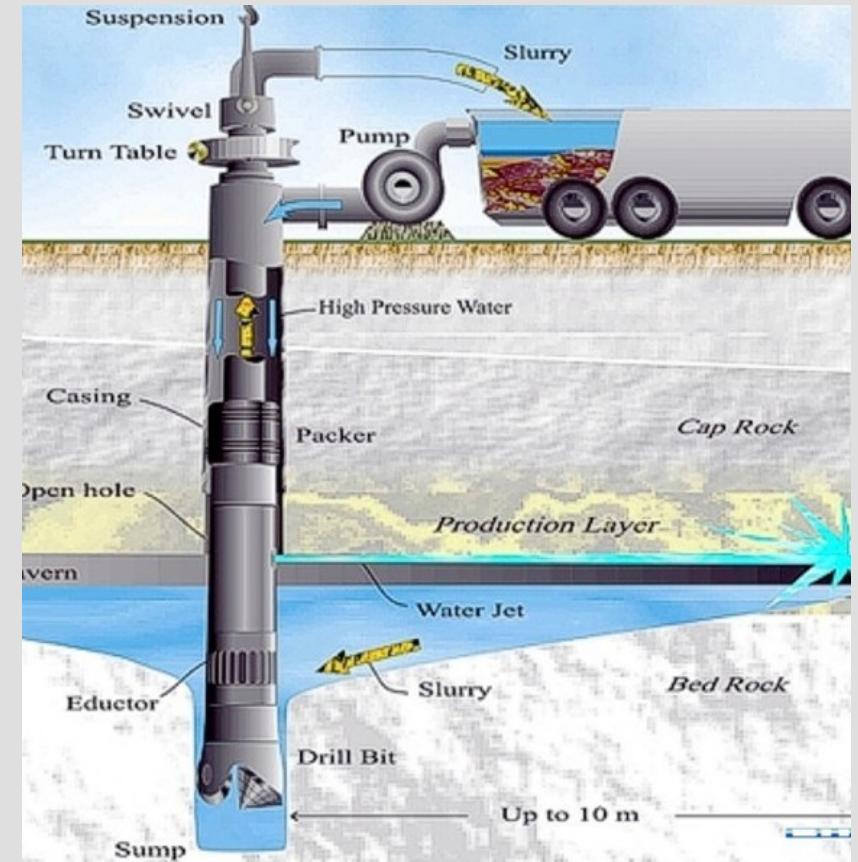
❖ **Cambridge Water Co. v Eastern Counties Leather Plc** **[1994] 2 A.C. 264**

- ❖ Damage of the relevant type in the event of an escape
- ❖ Likelihood of escape is not a factor (just the type of damage that would occur in the event it happens)
- ❖ In the case of limitation of scientific knowledge, *Rylands* would

Cambridge Water Co. v Eastern Counties Leather Plc [1994] 2 A.C. 264

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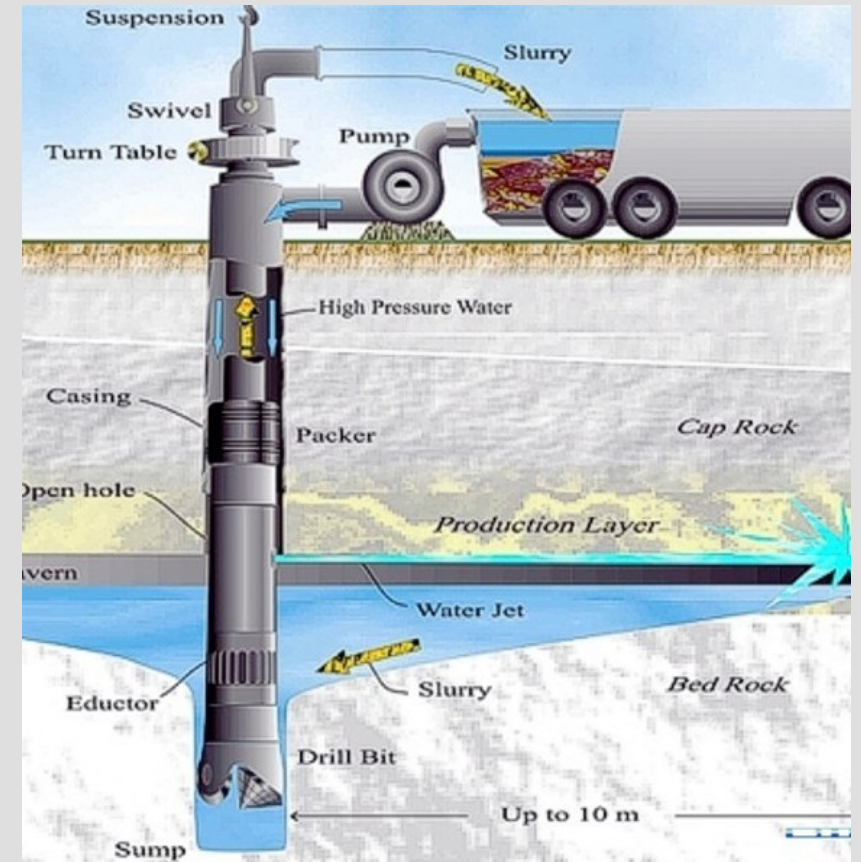
- ❖ C purchased a borehole to test water for potability and found it to be contaminated with PCE;
- ❖ Contamination was traced to D, where chemicals had seeped through a tannery factory floor and reached the water supply (and had been for some time);
- ❖ No evidence of spills or leaks – must have occurred from the old system;
- ❖ Borehole could no longer be used since drinking water was unsafe.
- ❖ Claim brought under negligence, nuisance, and *Rylands*.
- ❖ Storage of large quantities of chemicals an almost classic case of non-natural use; per Lord Goff [though obiter]



Cambridge Water Co. v Eastern Counties Leather Plc [1994] 2 A.C. 264

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- ❖ No liability as the damage was too remote
- ❖ No knowledge previously that PCE was harmful in the past
- ❖ Not foreseeable that this type of escape could result in this type of damage.
- ❖ Foreseeability had been 'intended' a part of the rule...the D is "*prima facie answerable for all the damage which is the natural consequence of its escape.*" *Rylands*



Non-natural use:

D's use of land must be non-natural/unusual

❖ "[Non-natural use] is not a test to be inflexibly applied. A use may be extraordinary and unusual at one time or in one place but not so at another time or in another place...I also doubt whether a test of reasonable use is helpful, since a use may well be quite out of the ordinary but not unreasonable." (*Transco v Stockport MBC* [2004] 2 A.C. 1 per Lord Bingham at [11])

❖ 'It must be some special use bringing with it increased danger to others and must not merely be the ordinary use of the land or such a use as is proper for the general benefit of the community "

❖ **What about when circumstances change?**

➤ "All the circumstances of time and practice of mankind must be taken into consideration so that what may be regarded as dangerous or non-natural may vary according to the circumstances." (*Read v Lyons* [1947] A.C. 156 per Lord Porter at 176)

➤ Eg, in 1919, keeping a motor vehicle full of petrol in a garage was considered a non-natural use (*Musgrove v Pandelis* [1919] 2 K.B. 43)

Transco Plc v Stockport Metropolitan Borough Council [2003] UKHL 61 1/2

'Non-natural' use of land:

- ❖ D (council) was responsible for maintaining utility pipes supplying flats;
- ❖ A large water main burst, causing serious flooding of the embankment, which the C's high pressure gas main ran under;
- ❖ The waterlogged embankment collapsed, leaving the gas main unsupported and exposed; and
- ❖ C brought a claim for emergency remedial measures.
- ❖ **Are sizeable gas and water mains 'non-natural use'?**
 - No liability as this is not a non-natural use;
 - 'Extraordinary and unusual use required' per Lord Bingham



Transco Plc v Stockport Metropolitan Borough Council [2003] UKHL 61 2/2

The personal injury issue

❖ “In some cases in the first half of the 20th century plaintiffs recovered damages under the rule for personal injury... [eg] *Hale v Jennings Bros* [1938] 1 All ER 579...But dicta in *Read v J Lyons & Co Ltd* cast doubt upon whether the rule protected anything beyond interests in land. Lord Macmillan (at pp 170-171) was clear that it had no application to personal injury and Lord Simonds (at p 180) was doubtful. But I think that the point is now settled by two recent decisions of the House of Lords: *Cambridge Water Co v Eastern Counties Leather plc* [1994] AC 264, which decided that *Rylands v Fletcher* is a special form of nuisance and *Hunter v Canary Wharf Ltd* [1997] AC 655, which decided that nuisance is a tort against land. It must, I think, follow that damages for personal injuries are not recoverable under the rule.” per Lord Bingham at [35].



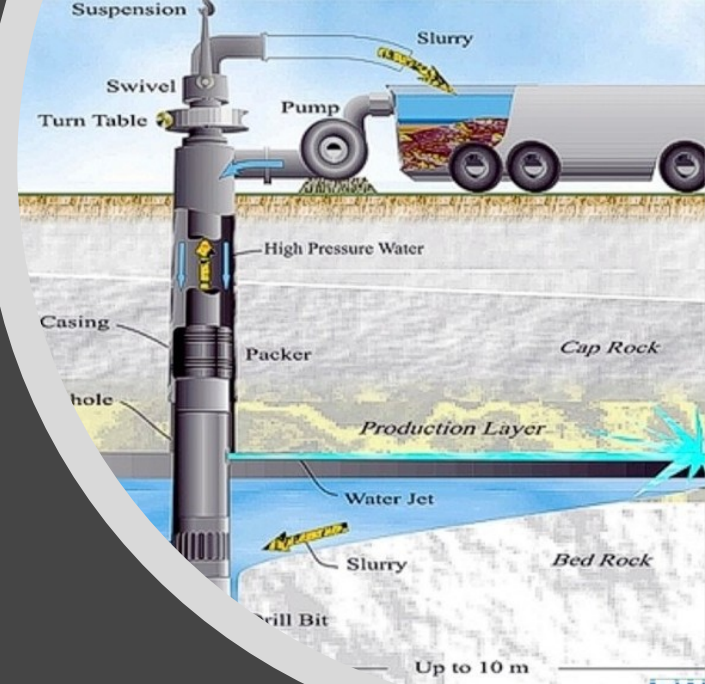
N.B. Christian Witting points out that these decisions have been made in dicta, but the rule seems settled.

Defences

- ❖ Consent (express or implied)
- ❖ Common Benefit (to both C & D - may be redundant to consent)
- ❖ Necessity
- ❖ Natural disaster/Act of God (not reasonably anticipated)
- ❖ Statutory Authority
- ❖ Default of C (act or omission of C)

- ❖ Act of stranger:

- No liability if harm comes from the unforeseeable act of a stranger
- *Rickards v Lothian* [1913] A.C. 263: Unknown third party intentionally blocked the sink in a premises with multiple occupants, causing flooding and damage to C's stock. Claim failed.
- Possibly limited to 'mischievous, deliberate, and conscious acts of a stranger' (excluding a stranger's negligence), but test turns on absence of control.
- If a stranger's interference is foreseeable, no longer a defence.



Summary

(and see following slides for arguments around keeping/replacing *Rylands* - what do you think?)



Is *Rylands* still relevant?

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- ❖ Extremely narrow application
- ❖ Proposal by Royal Commission in 1978 to replace the tort with a statutory scheme governing 'dangerous' activities
- ❖ Lots of statutory regulation, eg: Nuclear Installations Acts 1965 and 1969, but no overarching statutory scheme to deal with all type of "*Rylands* Objects"
- ❖ Others have argued that *Rylands* should be subsumed into tort of negligence and/or nuisance – Australia has followed this approach
- ❖ House of Lords in *Transco*, (see in particular Lord Bingham's judgment), said there is still a place for *Rylands*

Argument A: Statutory

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- ❖ A statute would give greater certainty (but countering that – could a statute cover all possible types of “*Rylands* Objects”?)
- ❖ *Rylands* should be abolished rather than be retained for ‘back up’ (Pearson Commission)
- ❖ Imposing strict liability should primarily be reserved for Parliament
- ❖ Statutory intervention is most appropriate for dealing with hazardous or inherently dangerous uses of land

Argument B: Negligence or Nuisance

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❖ *Rylands* is a type of sub-nuisance claim and/or has been subsumed into negligence.

❖ “The result of the development of the modern law of negligence has been that ordinary negligence has encompassed and overlain the territory in which the rule in *Rylands v Fletcher* operates. Any case in which an owner or occupier brings onto premises or collects or keeps a ‘dangerous substance’ in the course of non-natural use of the land will inevitably fall within a category of case in which a relationship of proximity under ordinary negligence principles will exist between owner and occupier and someone whose person or property is at risk of physical injury or damage in the event of the ‘escape’ of the

❖ Counterpoint:

➤ Different foci: Historically, *Rylands* had no requirement for proprietary interest. *Transco* has narrowed the approach more similarly to nuisance.

➤ Non-natural v Reasonableness: non-natural use is a required element for *Rylands*; reasonable use (or common and ordinary use) is a factor for nuisance (**Thought:** But does *Fearn’s* emphasis on common and ordinary take us nearer to collating the torts?).

➤ Repetition: isolated incident v ongoing

➤ Other distinctions may be discerned

Argument C: Keep *Rylands*

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- ❖ *Rylands* provides a limited, but important, cause of action where statutory remedies are not available and where no relief would be found under negligence.
- ❖ It is in the interest of justice to keep a common law 'back up' in case of lack of foresight or inaction in legislation.
- ❖ *Rylands* is flexible enough to accommodate changing circumstances and societal expectations.
- ❖ *Rylands* is an extension of nuisance, relating to isolated incidents, not continuing problems.

Rylands 'wins' for
now



The Rule in *Rylands v Fletcher* End Lecture

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